

Comment

Section 76 provides delivery of the consignment on surrender of railway receipt.

77. Power of railway administration to deliver goods or sale proceeds thereof in certain cases.- Where no railway receipt is forthcoming and any consignment or the sale proceeds of any consignment are claimed by two or more persons, the railway administration may withhold delivery of such consignment or sale proceeds, as the case may be, and shall deliver such consignment or sale proceeds in such manner as may be prescribed.

Comment

Section 77 provides for the manner in which delivery of consignment or sale proceeds may be made where two or more persons claim the same.

78. Power to measure, weigh , etc.

Notwithstanding anything contained in the railway receipt, the railway administration may, before the delivery of the consignment, have the right to –

- (i) re-measure, re-weigh or re-classify any consignment;
- (ii) re-calculate the freight and other charges ; and
- (iii) correct any other error or collect any amount that may have been omitted to be charge.

Comment

Section 78 gives right to railway administration to re-measure or re-classify any consignment and re-calculate the freight and other charges and to collect any amount that has been omitted.

79. Weighment of consignment on request of the consignee or endorsee :

A railway administration may on the request made by the consignee or endorsee, allow weighment of the consignment subject to such conditions and on payment of such charges as may be prescribed and the demurrage charges if any ;

Provided that except in cases where a railway servant authorized in this behalf considers it necessary so to do, no weighment shall be allowed of goods booked at owner's risk rate or goods which are perishable and are likely to lose weight in transit;

Provided further that no request for weighment of consignment in wagon load or train –load shall be allowed if the weighment is not feasible due to congestion in the yard or such other circumstances as may be prescribed.

Comment

Section 79 provides for weighment of consignment at the request of the consignee or the endorsee and the circumstances under which such weighment may not be permitted.

80. Liability of railway administration for wrong delivery :

Where a railway administration delivers the consignment to the persons who produce the railway receipt, it shall not be responsible for any wrong delivery on the ground that such person is not entitled thereto or that the endorsement on the railway receipt is forged or otherwise defective.

Comment

Section 80 absolves the railway administration from liabilities for delivery of consignment on production of railway receipt.

81. Open delivery of consignments : Where the consignment arrives in a damaged condition or shows signs of having been tampered with and the consignee or the endorsee demands open delivery, the railway administration shall give open delivery in such manner as may be prescribed.

Comment

Section 81 provided for open delivery of consignment if received in damaged condition.

82. Partial delivery of consignment :

(1) The consignee or endorses shall, as soon as the consignment or part thereof is ready for delivery, take delivery of such consignment or part thereof notwithstanding that such consignment or part thereof is damaged.

(2) In the case of partial delivery under sub-section (1) the railway administration shall furnish a partial delivery certificate, in such form as may be prescribed.

(3) If the consignee or endorsee refuses to take delivery under sub-section (1), the consignment or part thereof shall be subject to wharfage charges beyond the time allowed for removal.